

ON THE BOULEVARD SHOPPING CENTER LEASE AGREEMENT

This Lease Agreement (the “**Agreement**”) is entered into as of _____ (the “**Effective Date**”), by and between:

BELLE REALTY OF LAFAYETTE, LLC, a Louisiana limited liability company, whose current mailing address is PO Box 62230, Lafayette, LA 70596 and being represented herein by its Authorized Representative, Adam Abdalla (hereinafter referred to as the “**Lessor**”);

and

UPSTREAM GROWTH PARTNERS, LLC, a Delaware limited liability company, whose current mailing address is 1200 Corporate Drive, Suite 400, Birmingham, AL 35242, Attn: Legal (Real Estate) (hereinafter referred to as the “**Lessee**”).

WITNESSETH:

WHEREAS, Lessor is the owner of that certain real property together with improvements located thereon known as On the Boulevard Shopping Center located in Lafayette, Lafayette Parish, Louisiana (“**Boulevard Shopping Center Property**”).

WHEREAS, Lessee wishes to lease a certain portion of the Boulevard Shopping Center Property from Lessor according to the terms and conditions set out herein.

NOW, THEREFORE, in consideration of the foregoing and other good and valuable consideration herein, the sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

Section 1.01 – Premises:

A. Lessor does hereby lease to Lessee, and Lessee hereby leases from Lessor the following premises, being more particularly described as follows:

One Thousand Nine Hundred and Seventeen (1917) square feet located in the Boulevard Shopping Center Property as shown on the plat attached hereto as **Schedule A** and having the dimensions set forth thereon.

Said Premises has a municipal address of **145 Arnould Boulevard, Lafayette, Louisiana 70506**.

B. Lessee warrants and represents that it has inspected the Premises and accepts the Premises, including the building and improvements, in its present state and without any representation or warranty by Lessor whatever as to the condition of the Premises, except as may be provided for elsewhere herein. Lessor shall not be responsible for the condition of the Premises, except as may be provided for elsewhere herein. Notwithstanding the foregoing or anything to the contrary contained herein, the Premises shall be delivered with: (i) all of its systems for the Premises, including mechanical (e.g. HVAC), plumbing, electrical and structural systems, in good working order; (ii) no cracks and/or damage to the plate glass and/or windows for the Premises; and (iii) with all entry and egress doors and applicable hardware at the Premises in good working order ((i), (ii), and (iii) collectively, "Lessor's Work").

C. Except as provided for elsewhere herein, Lessor makes no covenant, representation or warranty as to the suitability of the Premises for any purpose or use whatsoever or as to the physical conditions thereof. Lessee acknowledges that it has inspected the Premises, observed the physical characteristics, determined the compliance with requirements imposed by any governmental agency having jurisdiction over the Premises, and examined its existing conditions, and has had the opportunity to conduct such investigation and study on and of the Premises as it deems necessary for its intended use and occupancy under this Agreement, subject to any representations of Lessor herein. Lessee hereby waives any and all objections to or complaints about the physical characteristics and existing conditions of the Premises, subject to any representations of Lessor herein. Except as provided for elsewhere herein, Lessee further acknowledges and agrees that the Premises is being leased to, and accepted by Lessee in its present condition "AS IS" with all faults, and Lessee hereby assumes the risk that its adverse physical characteristics and existing conditions may not have been revealed by its inspection or investigation of the Premises.

D. For purposes of this Lease, the "Delivery Date" shall be the later of: (i) the date when this Lease is fully executed and delivered to Lessee, and all keys to the Premises required for possession by Lessee thereof have been offered to Lessee or its contractor and the same have been noticed thereof; or (ii) the date Lessor's Work, as hereinafter defined, is completed. Lessor understands and acknowledges that timely delivery of the Premises with Lessor's Work completed and free of any prior tenant's occupancy or right to possession is a material consideration for Lessee to enter into this Lease. Therefore, if the Premises are not delivered to Lessee with Lessor's Work completed and free of any prior tenant's occupancy or right to possession within thirty (30) days of the date this Lease is fully executed, then Lessee may, but shall not be obligated to, terminate the Lease solely at its option and without penalty by giving Lessor written notice of such election to terminate the Lease.

Section 2.01 - Use:

Premises shall be used by Lessee during the term hereof solely for outpatient rehabilitation services (including, but not limited to, physical, occupational, speech and vestibular therapy). Lessee agrees that any change in the use of Premises shall require the prior written consent of the Lessor. All operations shall be conducted in a manner consistent with first-class standards and in compliance with all applicable laws, ordinances, and regulations.

Lessor hereby grants to Lessee an exclusive right within the Boulevard Shopping Center Property to use the Premises for outpatient rehabilitation services (including, but not limited to, physical, occupational, speech and vestibular therapy). Lessor shall not lease or permit any other tenant within the Boulevard Shopping Center Property to operate a business providing any such outpatient rehabilitation services during the term of this Lease and any renewal thereof. This exclusivity shall apply only to the Boulevard Shopping Center Property and shall not extend to any contiguous or adjacent properties not part of the Boulevard Shopping Center Property.

Lessor represents and warrants that there are no restrictions or prohibitions applicable to the Premises and/or the Boulevard Shopping Center Property which would restrict or prohibit Lessee's use for such outpatient rehabilitation services.

The Premises shall be not be used during the Initial Term or any Renewal Term hereof as:

- i. A delicatessen or other restaurant whose operations are the same or similar to a Jason's Deli or whose primary menu items are salads, soups, sandwiches, and baked potatoes or any one or more of said items.
- ii. A veterinary clinic engaged primarily in the care and treatment of cats.
- iii. A retail boutique whose primary business is the sale of items including home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry.
- iv. A retail boutique whose primary business is the sale of items including home goods, monogrammed and/or personalized items, candles, home decorations, drinkware, and jewelry.

Section 3.01 - Term:

The "Initial Term" shall be for a period of sixty (60) full calendar months (plus any partial calendar month if the Commencement Date is not the first day of a calendar month), unless sooner terminated as provided herein. The Initial Term shall begin on the earlier of: (i) the day that is the ninetieth (90th) day after the occurrence of both (a) the Delivery Date and (b) the date Lessee receives all applicable governmental permits required for Lessee to commence Lessee's Work (as same is hereafter defined), provided this (b) shall not apply if Lessee does not submit for its building permits within fifteen (15) days of the fully execution of this Agreement; or (ii) the date Lessee opens its business in the Premises to the public (the "**Commencement Date**").

Section 4.01 - Rent:

A. Premises Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a monthly base rent for the Premises, which is calculated as follows and depicted below in the column labeled "BASE":

See *Schedule G* attached hereto and made a part hereof

B. Additional Rent. During the Initial Term, the Lessee shall pay to the Lessor, as additional rent ("**Additional Rent**"), the following amounts.

1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion of the Common Area (as hereinafter defined) maintenance charges ("**Common Area Maintenance Charges**"). The Common Area Maintenance Charges shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private

roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as *Schedule B*. Notwithstanding the foregoing or anything to the contrary contained herein this Lease, Lessee's Pro Rata Portion of the Common Area Maintenance Charges shall not include: (i) the original cost of construction of the common areas including any repair and/or replacement thereof due to defect in the original construction, the cost of construction of new buildings in the Boulevard Shopping Center Property or the cost of acquisition of additional land or additional buildings for the Boulevard Shopping Center Property; (ii) amounts paid by Lessor as a result of personal injury or property damage to the extent not covered by insurance proceeds; (iii) except as specifically set forth in Section 4.01.B.1., general administrative overhead of Landlord that is not directly related to management of the Boulevard Shopping Center Property; (iv) compensation for services rendered in connection with any other property of Lessor; (v) costs of capital improvements, except Lessor may include the cost of capital improvements amortized on a straight-line basis over the useful life of such item, but in no event less than a five (5) year term; (vi) costs related to procuring tenants and negotiating leases or legal expenses incurred in connection with disputes with tenants; (vii) licensing fees and taxes; audit, professional and consulting fees and expenses for Lessor; (viii) any fees or costs for offering attendant or valet parking; (ix) any late fees and/or interest charged for Lessor's failure to timely pay any Common Area Maintenance Charges when due; (x) costs for maintaining any vacant space within the Boulevard Shopping Center Property; (xi) any costs for any repairs required to be made by Lessor herein; (xii) any interest or principal payments or other charges on any financing for the Boulevard Shopping Center Property; (xiii) the cost of any repair to remedy damage caused by or resulting from the negligence of any other tenants in the Boulevard Shopping Center Property, including their agents, servants or employees but only if and to the extent Lessor shall recover the cost thereof from said parties; (xiv) legal and other fees, commissions, advertising expenses and other costs incurred in connection with the leasing of the Boulevard Shopping Center Property; (xv) any bad debt loss, rent loss or reserves for bad debts or rent loss; (xvi) costs of Lessor related to formation of the ownership entity, internal matters including, but not limited to, preparation of tax returns and financial statements and gathering of data, costs of defending any lawsuits, costs of selling, syndication, financing, mortgaging or hypothecating any of Lessor's interest in the Boulevard Shopping Center Property; (xvii) legal and accounting fees; and/or (xviii) any administrative fee and/or management fee in excess of the ten percent (10%) administrative fee set forth hereinabove. Notwithstanding anything in this Lease to the contrary, in no event shall Common Area Maintenance Costs include any amount that is duplicative in nature of any other expense to be paid by Lessee hereunder, whether as a part of Common Area Maintenance Costs, as additional rent or otherwise.

2. **Tax and Insurance Charges.** The Lessee shall pay to the Lessor the Lessee's Pro Rata Portion of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property ("**Taxes and Insurance Charges**"). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, license fees, or other taxes or fees levied in connection with the Lessor's leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of premiums for any insurance obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies. Lessor shall be responsible for and shall promptly pay the full amounts of all such Taxes to the appropriate taxing authorities and all such Insurance Charges to its insurers. Notwithstanding the foregoing or anything to the contrary contained herein this Lease, Lessee's Pro Rata Portion of Taxes and Insurance Charges shall not include: (i) any administrative or management fees; (ii) any premiums for insurance carried on the personal property, furniture or equipment of any

other tenant of the or for the same located in any vacant space within the Boulevard Shopping Center Property; (iii) deductibles; (iv) late fees and/or interest charged for Lessor's failure to timely pay any premiums for Lessor's insurance or to timely pay any tax charges when due; (v) any franchise, capital stock, income, estate or inheritance taxes; and/or (vi) any assessments for the personal property, furniture or equipment of any other tenant of the Boulevard Shopping Center Property or for any vacant space within the Boulevard Shopping Center Property.

3. Payment of Additional Rent. Lessee shall pay to the Lessor, as Additional Rent, one twelfth of the Lessee's Pro Rata Portion of the Common Area Maintenance Charges and one twelfth of the Lessee's Pro Rata Portion of the Taxes and Insurance Charges as set forth herein.

The parties agree that as of the commencement date of this Agreement:

i. the Common Area Maintenance Charges are \$2.10 per square foot of the Premises annually, payable monthly as provided herein;

ii. the Tax Charges per square foot of the Premises annually, payable monthly as provided herein. The parties agree that the Insurance Charges are \$0.95 per square foot of the Premises annually, payable monthly as provided herein; and

iii. the parties agree that the Insurance Charges are \$1.95 per square foot of the Premises annually, payable monthly as provided herein; and

4. Total Monthly Rental Payment Amount for months one (1) through sixty (60) of the Initial Term for the Premises shall be calculated as follows:

See Schedule G attached hereto and made a part hereof

Notwithstanding anything contained herein to the contrary, beginning upon the commencement of the second calendar year of the Initial Term (provided the first calendar year of the Initial Term may be a partial calendar year), Lessor may, if, in Lessor's discretion, the same is necessary to cover an increase in Common Area Maintenance Charges and/or Taxes and Insurance charges, increase the amount of the Common Area Maintenance Charges and/or Taxes and Insurance Charges for any calendar year thereafter by providing written notice of the same to the Lessee; provided, however that any such increase shall not exceed the prior calendar year actual Common Area Maintenance Charges and/or Taxes and Insurance Charges paid by Lessee (annualized if the first calendar year to of the Initial Term is a partial calendar year) by more than five percent (5%).

During December of each calendar year or as soon as practicable, Lessor shall give Lessee written notice of its estimate of the Additional Rent payments to be made for the ensuing calendar year. If such notice is not given in December, Lessee will continue to pay on the basis of the prior year's estimate until the month after notice is given. Within ninety (90) days following the end of each calendar year, Lessor shall furnish to Lessee a statement covering such year just ended, showing the actual Additional Rent and the amount of Lessee's Pro Rata Portion of such costs for such year and the payments made by Lessee with respect to such year. Lessee's Pro Rata Portion of Additional Rent shall be prorated for any partial calendar years or partial months during the Lease Term. If Lessee's Pro Rata Portion of such costs is less than Lessee's payments so made, Lessee shall be entitled to a credit of the difference against the next regular monthly payment of Additional Rent or portion thereof until such credit is exhausted (or payment if such credit is not exhausted prior to the natural expiration or earlier termination of the Lease Term) or, if such share is greater than Lessee's said

payments, Lessee shall pay Lessor the difference within thirty (30) days after receipt of such statement. Lessee shall have the right, through its representatives, to examine, copy and audit the records that Lessor maintains with respect to Additional Rent by giving Lessor written notice of such election. Such audit shall occur at a reasonable time and at such place as Lessor shall reasonably designate from time to time for the keeping of such records. If the audit discloses that the Additional Rent for such calendar year are different than Lessor's statement, then Lessor shall reimburse Lessee for any overpayment of Additional Rent, or Lessee shall pay to Lessor any additional amount owed, as the case may be, in the manner set forth above. All costs of any such audit shall be borne by Lessee; provided, however, if the audit reveals the Additional Rent for such calendar year were overstated or understated, by three percent (3%) or more, Lessor shall reimburse Lessee for its reasonable costs of such audit. Lessee's and Lessor's obligations under this subsection shall survive the expiration or earlier termination of this Lease, however, Lessor shall not be entitled to collect any Additional Rent from Lessee if Lessor requests payment of same more than twelve (12) calendar months after the conclusion of the calendar year during which same accrued.

As used herein, the term "**Lessee's Pro Rata Portion**" shall be a fraction the numerator of which shall be the rentable square footage of the Premises and the denominator of which shall be the total rentable square footage of the Boulevard Shopping Center Property.

5. Payment of Rent. The monthly payment of the Base Rent and Additional Rent for the Premises (collectively, the "**Total Monthly Rental Payment**") shall be due on the first day of each calendar month. The Lessor and Lessee hereby acknowledge and agree that the Lessee shall be obligated to make monthly Additional Rent payments beginning with the Commencement Date and that Base Rent payments shall be made pursuant to Schedule G attached hereto.

In the event the Lessor does not receive the Total Monthly Rental Payment on or before the fifth day of the calendar month, a late fee in the fixed amount of \$100.00 plus a daily charge beginning on the sixth day of the calendar month in the amount of \$25.00 per day shall be charged and shall be due and payable by the Lessee for each late payment.

All rental payments due hereunder shall be made to the Lessor by mailing the same to PO Box 62230, Lafayette, LA 70596 or such other place, as the Lessor shall designate in writing. Notwithstanding the foregoing, Lessor shall have the right to require at any time during the Initial Term that the Total Monthly Rental Payment and any other payments due to Lessor be paid to Lessor via electronic funds transfer, automatic wire transfer, ACH payment transfer, or other automated electronic payment method for deposit into and credit to a bank account designated in writing by Lessor; provided, however, in no event shall Lessee be required to make payment via automatic debit.

Section 5.01 - Real Property Taxes:

Lessee shall be responsible for and shall pay before delinquency, its Pro Rata Portion of all real property taxes and assessments levied and assessed against the Premises as described in paragraph 4.01(B) hereof, and shall make such payment in accordance with paragraph 4.01(B) hereof.

Section 6.01 - Personal Property Taxes:

Lessee shall be responsible for and shall pay, before delinquency, all taxes, assessments, license fees, and other charges that are levied and assessed against Lessee's personal property installed or located in or on the Premises, and that become payable during the Initial Term or any renewal thereof.

Section 7.01 - Limitations on Use:

Lessee shall not do, bring or keep anything in or about the Premises that will cause the cancellation of any insurance covering the Premises. If the rate of any insurance carried by Lessor is increased, as a result of Lessee's use, Lessee shall reimburse Lessor for the amount of such increase.

- A. Lessee shall not permit any activity on the premises which may in law constitute a nuisance, public or private, or which may constitute a violation of any environmental laws, or any other laws, ordinances or regulations.
- B. Intentionally deleted.

Section 8.01 - Assignment and Subletting:

Except as otherwise herein provided, Lessee shall not sell, mortgage, transfer, assign or sub-let all or any portion of the Premises without the prior written consent of the Lessor, which consent shall not be unreasonably withheld, conditioned or delayed. Provided however, the Lessor shall not be obligated to consent to any assignment, transfer or sub-let in the event the proposed transferee's use of the Premises would be in conflict with the provisions of any other lease in the Boulevard Shopping Center Property. Further provided, that in no event shall Lessor's consent to an assignment or subletting be construed as (i) relieving Lessee from the obligation to obtain Lessor's express written consent to any further assignment or subletting or (ii) except as hereinafter provided, releasing Lessee from any liability or obligation hereunder whether or not then accrued, and Lessee shall continue to be, fully, jointly and severally liable hereunder. Except with respect to a Permitted Transfer or purported assignment not made in accordance with this Section 8.01, an assignee of this Lease shall become directly liable to Lessor for all obligations of Lessee hereunder and the original Lessee shall be free from all liabilities and obligations accruing after the effective date of said assignment.

Notwithstanding the foregoing, Lessee may assign this Lease or sublet the Premises (or a portion thereof) without Lessor's consent to an entity that controls, is controlled by Lessee, is under common control with Lessee or is the surviving entity after a merger or joint venture with Lessee or acquisition of all or substantially all of Lessee's assets (each a "Permitted Transfer" and the successor entity a "Permitted Transferee"), provided there is no change in Lessee's Permitted Use of the Premises and original Lessee shall not be released from liability under this Agreement.

The Lessor may sell, mortgage, transfer or assign its interest in this Agreement at any time without the consent of the Lessee, but such transaction(s) shall be made subject to rights of Lessee under this Lease.

Section 9.01 - Maintenance, Repairs:

Lessee acknowledges that it shall surrender the Premises at termination hereof, in as good condition as received, normal wear and tear excepted. Lessee shall be responsible for all repairs required, excepting the roof, exterior walls and structural foundation (including the electrical and plumbing systems situated in or below the Premises' concrete slab foundation), which shall be maintained by Lessor. Lessee shall also be responsible for keeping at all times areas immediately adjacent to the Premises, such as sidewalks and parking areas, free and clear of trash and other refuse generated at the Premises. Lessee shall promptly repair any damage to any part of the building in which the Premises is located, including but not limited to the roof, exterior walls and structural foundation (including the electrical and plumbing systems in or below the Premises' concrete slab foundation), in the event such damage is caused by or attributable to the actions or inactions of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, licensees, or invitees, provided, with regard invitees, such invitees are within the Premises at the time of such action or inaction, to the extent to which such is not covered by insurance under Section 15.01.

Notwithstanding the foregoing, the Lessor shall be responsible for the repair and replacement, if necessary, of the heating and air conditioning (“**HVAC**”) system servicing the Premises provided that (i) the Lessee shall pay the first \$750.00 for each repair visit and 1,500.00 toward the replacement cost of the HVAC system or any component thereof, and (ii) the Lessee maintains, at its own expense, for the full term of this Agreement and any renewal or extensions thereof, a monthly maintenance contract with Butcher Air Conditioning or other agreeable HVAC Service Provider for regular routine maintenance to the HVAC systems and components thereof in the Premises. Further provided, in the event it is determined by the HVAC maintenance provider that the HVAC systems or any component thereof must be replaced and such replacement is made within fifteen (15) days of a repair visit made by such HVAC maintenance provider (“**Preceding Repair Visit**”) (not including a routine maintenance visit pursuant to a monthly maintenance contract), then the amount paid by the Lessee toward the cost of the Preceding Repair Visit shall be credited toward the Lessee’s obligation to pay \$1,500.00 toward the replacement cost of the HVAC system. Lessee further agrees to maintain the Premises in clean and healthful condition and to comply with all laws, ordinances, orders, rules and regulations (state, federal, municipal and any other agencies or bodies having any jurisdiction thereof) with respect to the use, condition or occupancy of the Premises. In discharging the responsibilities hereunder, Lessee shall utilize the services of bonded, licensed contractors to perform all maintenance or repair work to the Premises. Lessee agrees to hire Butcher Air Conditioning, or other agreeable HVAC provider, to perform all maintenance, repairs and replacements of the heating and air conditioning systems and components servicing the Premises.

Lessee further agrees to maintain the Premises in clean and healthful condition and to comply with all laws, ordinances, orders, rules and regulations (state, federal, municipal and any other agencies or bodies having any jurisdiction thereof) with respect to the use, condition or occupancy of the Premises. In discharging the responsibilities hereunder, Lessee shall utilize the services of bonded, licensed contractors to perform all maintenance or repair work to the Premises.

Section 10.01 - Alterations:

Lessee shall not make any additions, improvements or alterations, structural or otherwise, to the Premises without Lessor’s written consent, which consent shall be in the reasonable discretion of the Lessor. In making any improvements, additions or alterations that require the consent of Lessor, Lessee, after obtaining Lessor’s consent, shall comply with the following:

- A. The improvements or alterations shall not be commenced until seven (7) days after Lessor has received written notice from Lessee stating the date the alternations are to commence and Lessor has consented to same.
- B. The improvements or alterations shall be in conformance with all applicable local, state or federal laws and regulations.

The Lessee shall not cause or permit, due to work performed by or at its direction, any mechanic’s liens to be filed against the Premises, and Lessee shall indemnify, hold harmless, and defend the Lessor from and against any and all such liens.

Moreover, any additions, alterations and improvements made by Lessee, with or without consent of the Lessor, no matter how attached to the Premises, shall remain the property of the Lessor upon termination of this Agreement or surrender of the Premises by Lessee unless otherwise stipulated herein, and Lessee expressly waives any right to compensation or reimbursement for any such additions, alterations or improvements which may be made on the

Premises. Notwithstanding the above, however, Lessee may remove from the Premises its office supplies, movable office furniture and movable equipment and trade fixtures not attached to the Premises provided (a) such removal is made prior to the termination of the term of this Agreement; and (b) Lessee promptly repairs all damage, no matter how slight, caused by the installation, use or removal of such furniture or equipment.

In addition to Lessor's Work, the Premises requires improvements suitable to Lessee for its operation therein. Lessee shall construct such improvements pursuant to Lessee's architectural drawings ("Lessee's Plans") attached hereto as Schedule H (all such work being hereinafter called "Tenant's Work"). NOTWITHSTANDING ANYTHING CONTAINED HEREIN TO THE CONTRARY, LANDLORD HEREBY AGREES THAT TENANT'S PLANS ATTACHED HERETO AS SCHEDULE H ARE APPROVED. IN THE EVENT OF ANY CONFLICT BETWEEN THE TERMS OF THIS LEASE AND LESSEE'S PLANS, LESSEE'S PLANS SHALL CONTROL.

Section 11.01 - Utilities and Janitorial Services:

Beginning on the Delivery Date, Lessee shall pay before same becomes delinquent, all utility and service charges for utilities or services furnished to the Premises or used by the Premises or the Lessee, including, without limitation, electricity, gas, water, telephone service and trash collection. Lessee shall be responsible for maintaining the Premises in accordance with the terms hereof and shall be responsible for the payment of any costs or expense with respect to any janitorial services provided to the Premises, and Lessee shall be responsible for the trash or refuse disposal services to the trash or refuse generated by or related to the Premises. Lessee may share the cost of a dumpster with another tenant for the trash or refuse disposal services to the trash or refuse generated by or related to the Premises

At the commencement of the Initial Term, Lessee shall immediately transfer electric utility service from the name of Lessor to the name of Lessee. If the Lessee fails to immediately transfer electric utility service to the name of Lessee, Lessor may, at its discretion, (i) direct the electric utility provider to discontinue service to the Premises in Lessor's name, or (ii) make electric utility payments on behalf of Lessee and require that Lessee remit to Lessor full reimbursement for such payments together with a \$100.00 administrative fee for each payment required to be made by Lessor.

Lessee shall not disconnect the electricity, gas or water at any time during the term of this Agreement, including in anticipation of the termination of the tenancy created herein. Upon termination of the term of this

Agreement, or in anticipation thereof, Lessee shall give Lessor reasonable written notice of its intent to disconnect electricity, gas and/or water service. Upon receipt of written notice to disconnect, Lessor may require, in its sole discretion, that Lessee reasonably cooperate with Lessor and do all things necessary to allow such utilities to be transferred into Lessor's name prior to disconnection. Notwithstanding the foregoing, any tap or impact fees, transportation fees, etc. that are directly related to Lessor's development and management of the Boulevard Shopping Center Property and/or to a general mercantile use of the Premises shall be at Lessor's expense. Lessee shall be responsible for any fees assessed by the local municipality for its permit plans and building permit application to the extent specifically related to the Premises and Lessee's specific Permitted Use of the Premises.

Section 12.01 - Signs:

Lessee, at its cost, shall have the right to place, construct and maintain an exterior sign on the Premises advertising its business conducted on the Premises. Such sign shall be located on the front exterior wall of the Premises above the front canopy extending from the front wall. Lessor shall have the right to approve such signs prior to their placement on the Premises, which approval shall not be unreasonably withheld, and any sign that Lessee has the right to place, construct and maintain shall comply with all applicable laws or regulations including, but not limited to the

rules and regulations attached hereto as *Schedule C* and the design criteria attached hereto as *Schedule D*. Upon termination of the tenancy herein created, Lessee shall remove any sign so placed and repair any damage or injury to the Premises or the exterior thereof caused by such removal, and Lessee shall retain the contractor designated by Lessor to repair the damage caused by such removal. In the event the Lessee does not remove its sign as provided herein, then the Lessor shall have the right to remove the sign or signs and the Lessee shall be responsible for the payment of such removal and such cost or expense shall be considered as rent due hereunder.

In addition, Lessee must obtain prior written approval from Lessor of all Lessee exterior signage.

Should Lessee choose to place a sign under the Premises walkway, it must be approved by Lessor and paid for by the Lessee.

Lastly, Lessee shall have the right to place its signage upon a pylon panel on both sides of the Boulevard Shopping Center Property's pylon sign, provided Lessee shall obtain Lessor's written approval of such panel design prior to installation of the same.

Section 13.01 - Access:

Lessor and its authorized representatives shall have the right after forty-eight (48) hours' notice to Lessee, to enter the during Lessee's business hours and at all other reasonable times with such prior notice for the purpose of:

- A. Determining whether the Premises is in good condition and whether Lessee is complying with its obligations under this Agreement;
- B. Doing any necessary maintenance and to make any restoration or repair to the Premises or the building and other improvements in which the Premises is located that Lessor has the right or obligation to perform.
- C. Posting "for rent" or "for lease" signs during the last three (3) months of the term of this Agreement or any renewal thereof.

Lessor shall, however, make commercially reasonable efforts to minimize disruptions to Lessee's business operations at the Premises during any such entrance. Lessor and its employees, agents, and contractors shall have absolutely no right to access, use or disclose any protected health information ("PHI") or electronic protected health information ("ePHI") about any patient of Lessee or its sublessees, assigns, or permitted occupants. In the event any medical records or documents containing PHI or ePHI are within view of the Lessor or its agents, employees, or contractors, neither Lessor nor such agents, employees, or contractors of Lessor shall review, access, attempt to access or look at such documents and PHI or ePHI under any circumstances. In the event of any such access, such PHI and ePHI shall be promptly returned to Lessee or its sublessees, assigns, or permitted occupants, as applicable.

Section 14.01 - Indemnity:

Lessee shall hold Lessor harmless from all damages arising out of any loss, theft, injury or damage to any person or property (as the case may be) occurring in, on, or about the Premises except for damages resulting from the negligence or willful conduct of Lessor or its employees, agents, or contractors. Lessee shall be liable to Lessor for damages resulting from the acts or omissions of Lessee, its employees, officers, directors, shareholders, members, partners, representatives, agents, licensees, or, only if and to the extent such invitees are within the Premises at the time of such act or omission, invitees, or of Lessee's, its employee's, officer's, director's, shareholder's, member's, partner's, representative's, agent's, licensee's, or, only if and to the extent such invitees are within the Premises at the time of

such negligence (including gross negligence) or willful misconduct, invitee's negligence, gross negligence or willful conduct. Lessee's obligation under this paragraph to indemnify and hold the Lessor harmless shall be limited to the sum that exceeds the amount of insurance proceeds, if any, received by the Lessor. Lessor shall be liable to Lessee for damages resulting from the acts or omissions (including a breach of the terms of this Agreement) of Lessor, its employees, officers, directors, shareholders, members, partners, representatives, agents, or contractors and Lessor shall indemnify, defend, and hold Lessee harmless from any claims, loss, damage, liability, and expense (including reasonable attorney's fees) arising in connection therewith. The indemnitee shall give prompt notice to the indemnitor of any claim to which this indemnity applies.

Section 14.02 - Hazardous Substances:

Lessee warrants and covenants that neither the Lessee, nor its employees, agents, officers, shareholders, partners, members, invitees, guests or customers shall use, deposit, store, transport, locate, bring on to or cause to be brought on to the Premises any Hazardous Substances and further warrants and covenants that neither Lessee nor employees, agents, officers, shareholders, partners, members, invitees, guests or its customers shall release, discharge, spill, dispose, emit or permit the breakage of, Hazardous Substances in, on or under the Premises.

Lessee agrees to indemnify and hold harmless Lessor from any and all claims, damages, fines, judgements, penalties, costs, liabilities, or losses (including, without limitation, any and all sums paid for settlement of claims, attorneys' fees, consultant and expert fees) arising during or after the term of this Agreement or any renewal hereof from or in connection with the presence or suspected presence of Hazardous Substances in or on the Premises, which Hazardous Substances were brought onto the Premises during the term of this Agreement or any renewal thereof by the Lessee, its agents, officers, representatives, employees, invitees or licensees. Without limiting of the foregoing, this indemnification shall include any and all costs incurred due to any investigation of the site or any cleanup, removal, or restoration mandated by a federal, state, or local agency or political subdivision.

For purposes of this section, the term "Hazardous Substances" shall be interpreted broadly to include, but not be limited to, substances designated as hazardous under the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended, 42 U.S.C. 9601, et seq., the Resource Conservation and Recovery Act, 42 U.S.C. 2201, et seq., and any applicable State or federal law or regulation. The term shall also be interpreted to include but not be limited to any substance which after release into the environment and upon exposure, ingestion, inhalation or assimilation, either directly from the environment or directly by ingestion through food chains will or may reasonably be anticipated to cause death, disease, behavior abnormalities, cancer and/or genetic abnormalities, and oil and petroleum based derivatives. Notwithstanding the foregoing, Lessee shall be allowed to have Hazardous Substances upon the Premises, without the necessity of providing Lessor with notice thereof or of obtaining Lessor's consent thereto, provided such substances are commonly found in general office settings or are Regulated Waste as same is defined under 29 CFR §1910.1030(b) ("OSHA") or under any approved State version of OSHA if OSHA was not adopted in such State, or are otherwise substances considered medical waste or biohazardous waste, provided such substances and Regulated Waste are managed and disposed of by Lessee in accordance with applicable law.

The provisions of this section shall be in addition to any other obligations and liabilities Lessee may have to Lessor at law or in equity and shall survive the termination of this Agreement.

Lessor shall deliver the Premises free and clear of Hazardous Substances and of any claim, charge or lien upon the Premises resulting from Hazardous Substances. Lessor shall indemnify, defend, and hold harmless Lessee and its successors and assigns from any and all loss, damage or expense, claim, charge or lien upon the Premises resulting from Hazardous Substances that exists on the Premises as of the Delivery Date or which are discharged by Lessor or its employees, agents, or contractors from or on the Premises or Shopping Center. Such indemnification shall survive the expiration or early termination of this Lease.

Section 15.01 - Insurance:

Lessee, at its cost, shall maintain comprehensive general liability insurance in a minimum amount of \$1,000,000.00 for each occurrence with a \$2,000,000.00 general aggregate, including \$1,000,000.00 personal and advertising coverage, \$100,000.00 in fire legal liability, and \$5,000.00 in medical payments, insuring against liability of Lessee arising out of and in connection with Lessee's use or occupancy of the Premises. Lessee shall maintain property insurance on improvements to the Premises made by Lessee and Lessee's trade fixtures, equipment, inventory, and any other business personal property in an amount equal to 100% of the replacement cost value thereof and providing protection, at minimum, against perils included within the ISO Special Causes of Loss Form insurance policy (or substitute form providing equal or better coverage). All such insurance policies shall name the Lessor as an additional insured or additional payee as its interest may appear. At the Commencement Date and on each anniversary date of the Commencement Date, Lessee shall supply to Lessor a certificate that such insurance is in force and the requisite premiums have been paid. Lessee's insurance policies and coverage shall be endorsed to apply on a primary basis. It is further provided that Lessee's insurance policies and coverage shall contain (either directly in the policy or by endorsement) a provision that provides that the Lessor shall be entitled to thirty (30) days prior written notice of cancellation and/or non renewal of such policy or coverage of the Lessee.

Lessor shall maintain fire, casualty and extended coverage insurance on the Boulevard Shopping Center Property and improvements thereon, and upon written request from the Lessee, the Lessor shall supply to Lessee a certificate establishing that such insurance is in force and the requisite premiums have been paid. Lessor shall maintain in full force during the Lease Term Commercial General Liability insurance with limits of at least \$1,000,000 per occurrence, \$2,000,000 General Aggregate covering Lessor's liability arising out of the Boulevard Shopping Center Property.

Section 16.01 - Waiver of Subrogation:

Notwithstanding anything to the contrary contained herein this Lease, Lessor and Lessee do hereby waive any and all claims against one another for damage to or destruction of real or personal property, whether constituting a part of the Premises or the Boulevard Shopping Center Property, to the extent such damage or destruction is covered by the property insurance required to be maintained by the parties as described in Sections 15.01 above, even if such damage or destruction shall have been caused by the fault or negligence of the other party, or anyone for whom such party may be responsible. Each party shall also be responsible for the payment of any deductible amounts required to be paid under its property insurance. These waivers shall apply if the damage would have been covered by such insurance, even if the party fails to obtain such coverage. Each party shall cause each insurance policy obtained by it to provide that the insurance company waives all right of recovery by way of subrogation against either party in connection with any liabilities or damage covered by any policy.

Section 17.01 - Damage or Destruction:

If the Premises is so damaged or destroyed by fire, flood, earthquake, the elements, casualty, war, riot, public disorder, acts authorized or unauthorized by the government (including a condemnation proceeding) or any other cause or happening so as to render the Premises unusable for Lessee's operations, as determined by the Lessor and Lessee acting in good faith and in a commercially reasonable manner, this Agreement shall terminate immediately, and any unearned rent paid by Lessee shall be refunded without demand, setoff or reduction as of the date of such destruction or damage.

If the Premises is partially damaged or rendered partially unusable by fire or other casualty, as set forth above in the immediately preceding paragraph, Lessee shall give Lessor written notice of the damage. Lessor shall promptly repair the damage to the Premises at Landlord's expense, provided Lessor shall have no obligation to make repairs for

improvements to the Premises made by Lessee or by anyone claiming under Lessee or to Lessee's trade fixtures, equipment, inventory, and any other of its business personal property. If repairs required to be made by Lessee are not commenced by the Lessee within thirty (30) days from the date of such notice to Lessor (which "undertaken" may mean mitigation efforts such as drying out) or from the date Lessor turns over the Premises to Lessee after Lessor's repairs are completed, as applicable, Lessor may terminate this Agreement by giving written notice to the Lessee. If Lessor elects not to terminate, this Agreement shall continue in full force and effect and the damages to the improvements to the Premises made by Lessee or by anyone claiming under Lessee or to Lessee's trade fixtures, equipment, inventory, and any other of its business personal property shall be repaired by and at the expenses of Lessee, except to the extent provided for or compensated for by Lessor's insurance or to the extent should be provided for or compensated for by Lessor's insurance. Moreover, until such repair is substantially completed so that full use and occupancy of the Premises by Lessee is possible, the rent shall be apportioned according to the portion of the Premises which remains usable. If such repairs are not completed within one hundred eighty (180) days from the date of written notice of the casualty to Lessor, the Lessor may terminate this Agreement by the giving of written notice to the other party within ten

(10) days of the expiration of the 180-day period. If Lessor's repairs are not completed within one hundred eighty (180) days from the date of written notice of the casualty to Lessor, the Lessee may terminate this Agreement by the giving of written notice to the other party within ten

(10) days of the expiration of the 180-day period.

If the building in which the Premises is located, or any portion thereof, provided such damaged portion contains all or a portion of the Premises, is partially damaged or rendered partially unusable by fire or other casualty as set forth above, as determined by the Lessor or Lessee acting in good faith and in a commercially reasonable manner, Lessor shall undertake the repair of the building and the Premises within thirty (30) days from the date of the damages. This Agreement shall continue in full force and effect during the period of the repair and/or until this Agreement is terminated as provided herein. Moreover, until such repair is substantially completed so that full use and occupancy of the Premises by the Lessee is possible, the rent shall be apportioned according to the portion of the Premises remaining usable. If such repairs are not completed within one hundred eighty (180) days from the date that the repair work is began, either party may terminate this Agreement by giving written notice to the other party within ten (10) days of the expiration of the 180 day period.

Section 18.01 – Lessee's Default:

The following events shall be deemed to be events of default by Lessee under this Agreement:

A. Lessee shall be adjudged bankrupt, or shall file a voluntary petition in bankruptcy or make a general assignment for the benefit of Lessee's creditors, or a receiver be appointed for Lessee's property, or if execution be issued against Lessee's interest in this Agreement, or if Lessee's interest in this Agreement shall by operation of law pass to any person other than Lessee; or

B. Lessee shall fail to pay the rental due hereunder or any other amount payable to Lessor hereunder within ten (10) days of the date when due; or

C. *Intentionally deleted;* or

D. Lessee shall fail to perform any requirements of this Agreement, other than a failure described in subsection 18.01(B) or 18.01 (C) above, and such failure shall continue for thirty (30) days after written notice of such failure from Lessor delivered to Lessee.

Upon the occurrence of any one or more of such events of default, at the option of Lessor, (i) this Agreement shall cease and terminate immediately and Lessee shall quit and surrender the Premises to Lessor, or (ii) Lessor may pursue any remedy available to Lessor, whether by law or contract, or in equity, including without limitation the repossession of the Premises by Lessor, in which event Lessee shall be liable for all rent payable through the date of repossession. If this Agreement shall have been terminated by Lessor pursuant to this Section 18.01, Lessor may at any time thereafter resume possession of the Premises by any lawful means, and remove Lessee and Lessee's property therefrom. Time is of the essence with respect to all matters described in this Section 18.01.

Section 19.01 – Lessor's Default:

Lessor shall be in default of this Agreement if it fails or refuses to perform any provision of this Agreement that it is obligated to perform if the failure to perform is not cured within thirty (30) days after written notice of the default has been given by Lessee to Lessor. If the default cannot reasonably be cured within thirty (30) days, Lessor shall not be in default of this Agreement if Lessor commences to cure the default within the thirty- day period and in good faith continues to cure the default. In the event the Lessor fails to cure a default as provided hereinabove and the continuance of such default results in the interruption of the Lessee's peaceable enjoyment of the Premises, then the Lessee shall be entitled to the abatement of the monthly rent payable under this Agreement and the amount of such abatement shall be in the same proportion as the amount of the Premises rendered unusable by Lessor's default is to the totality of the Premises. Furthermore, if Lessor fails to cure or commence to cure its default as provided for in the foregoing provisions of this Section 19.01, Lessee may elect, without any demand or notice: (i). To pursue any remedy available to Lessee under the Lease; or (ii). To terminate this Lease in the event of a continuing, uncured material default by Lessor. As used herein, a "material default by Lessor" shall mean any default by Lessor which materially and adversely affects Lessee's ability to operate from the Premises for the Permitted Use hereunder or which renders the Premises untenable, either in whole or in part; or (iii). To enforce the performance of Lessor's obligations hereunder by injunction or other equitable relief; or (iv). To pursue any remedy available to Lessee at law and equity; or (v). To pursue any combination of the foregoing remedies as may be permitted by applicable law. Lastly, should Lessor fail to complete repairs to the HVAC unit(s) exclusively serving the Premises within thirty (30) days after written notice of the failure has been given by Lessee to Lessor (or such earlier time as reasonably required in the event of an emergency repair that prevents Lessee from being able to open and operate for business from the Premises), then Lessee shall have the right to make such repairs and to be reimbursed by offset in future rental payments owed from Lessee to Lessor.

Section 20.01 - Surrender of Premises:

Upon termination of this Agreement by lapse of time or otherwise, Lessee shall immediately surrender the Premises in as good condition as it was in at the beginning of the Initial Term, acts of God, and other casualty excepted. In the event the Lessee retains possession of the Premises without exercising its option to renew in accordance with the terms of this Agreement and after the termination date of this Agreement, then the Lessee shall pay to the Lessor a monthly rental amount equal to 150% of the monthly rental amount set forth in Section 4.01 hereof for the month just prior to such termination for each month or part thereof that the Lessee retains possession of the Premises after the termination date of this Agreement.

Section 21.01 - Notice:

Any notice, demand, request, or consent that either party describes or is required to be given hereunder shall be in writing and shall be deemed sufficient if sent by United States first class mail, return receipt requested, Federal

Express, or UPS:

LESSOR:

BELLE REALTY OF LAFAYETTE, LLC

c/o Adam Abdalla

Belle Realty of Lafayette, LLC adam@belle-realty.com

337-288-5411 (cell)

337-769-1554

PO Box 62230

Lafayette, LA 70596 belle-realty.com

LESSEE:

UPSTREAM GROWTH PARTNERS, LLC

c/o Upstream Rehabilitation Inc.

1200 Corporate Drive, Suite 400

Birmingham, AL 35242

Attention: Legal (Real Estate) Either party may notify the other in writing of any different address for notice purposes.

All such notices shall be deemed given on the date of receipt at the applicable address as evidenced by the return receipt and/or delivery confirmation.

Section 22.01 - Common Area, Non-Exclusive Cross Use Easement and Parking:

Lessor shall have the sole and exclusive control of the Common Area as well as the right to make changes to the Common Area. Lessor's rights with respect to the Common Area shall include, but not be limited to, the right to (i) restrict the use of the Common Area by unauthorized persons (ii) utilize from time to time any portion of the Common Area for promotional and related matters, (iii) temporarily close any portion of the Common Area for repairs, renovations, alterations or otherwise (iv) limit the activities or uses of the Common Area by the Lessee, its agents, invitees, and employees; provided, however, Lessor shall use commercially reasonable efforts to minimize interruptions to Lessee's business operations in the Premises, including the access thereto.

Each lessee of the Boulevard Shopping Center Property shall have a non-exclusive right to use and enjoy the Common Area, subject to the provisions contained in this Agreement. Provided however, in no event shall there be any overnight parking or storage of any boats, automobiles, trucks, recreational vehicles, campers or trucks larger than those having six wheels on the Boulevard Shopping Center Property. In addition, no lessee shall perform or permit to be performed any maintenance on any vehicles in the Common Area. All delivery vehicles owned and operated by any lessee in connection with its business located in the Boulevard Shopping Center shall be parked at all times, during business and non-business hours in the rear of the lessee's leased premises. Lessee agrees to request employees not to park in the first row of parking spaces immediately adjacent to the storefront of the Boulevard Shopping Center Property.

Section 23.01 - Interpretation:

This Agreement shall be construed and interpreted in accordance with the laws of the State of Louisiana.

Section 24.01 - Waiver:

No delay or omission by either party in exercising any right occurring upon any noncompliance or default by the

other party with respect to any of the terms hereof shall impair any such or be construed to be waiver thereof. A waiver by either party of any of the covenants and agreements to be performed by the other shall not be construed to be a waiver of any succeeding breach thereof or of any other covenants or agreements herein contained.

Section 25.01 - Heirs and Successors:

Subject to the provisions hereof pertaining to assignment and subletting, the covenants and agreements of this Agreement shall be binding upon the heirs, legal representatives, successors and assigns of the parties hereto.

Section 26.01 - Integrated Agreement; Modification:

This Agreement contains all of the agreements of the parties and cannot be amended or modified except by a written agreement signed by the Lessor and the Lessee.

Section 27.01 - Recordation:

This Agreement shall not be recorded, except that if either party requests the other party to do so, the parties shall execute a memorandum of lease in recordable form.

Section 28.01 - Captions:

The captions used in this Agreement shall have no effect of its interpretation.

Section 29.01 - Severability:

The unenforceability, invalidity, or illegality of any provision of this Agreement shall not render the other provisions unenforceable, invalid or illegal.

Section 30.01 - Attorney's Costs:

If by reason of any default on the part of either party hereto, the non-defaulting party retains an attorney to enforce the provisions of this Agreement, the defaulting party shall be liable to the non-defaulting party for the non-defaulting party's reasonable attorney's fees and costs associated with such enforcement and/or notification and shall pay such fees and/or costs within thirty (30) days of receipt of written notice of the amount of such attorney's fees and/or costs incurred by the non-defaulting party. If by reason of any default on the part of Lessee, Lessor shall bring suit to recover any rent due hereunder, or for breach of any provision of this Agreement or to recover possession of the Premises, or if Lessee shall bring any action for any relief against Lessor, declaratory or otherwise, arising out of this Agreement, the prevailing party shall have and recover against the other party in addition to the costs allowed by law, such sum as the court may judge to be a reasonable attorney's fee.

Section 31.01 - Option to Renew:

Provided that Lessee is not in default in the performance of this Agreement, Lessee shall have the option to renew the lease for one (1) additional term of five (5) years, commencing on the next day following the expiration of the Initial Term. All of the terms and conditions of this Agreement shall apply during the renewal term except that the Base Rent during the first renewal option shall be \$15.40 per square foot (\$29,521.80 per annum, payable in 12 equal monthly installments of \$2,460.15). The option to renew shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the Initial Term. If notice is not given in the manner provided herein and within the time specified, this option to renew shall terminate.

Section 32.01 – Subordination:

A. This Agreement is subject and subordinate to any mortgage which now or hereafter encumbers or affects the building of which the Premises form a part and/or the leasehold interest or fee simple interest of the Lessor in the land upon which the building is situated, and to all renewals, modifications, consolidations, replacements and extensions thereof. This clause shall be self-operative and no further instrument of subordination need be required by any mortgagee of Lessor. In confirmation of such subordination, however, Lessee shall, at Lessor's request, promptly execute any appropriate certificate or instrument that Lessor may request that is reasonably acceptable to Lessee. In the event of the enforcement by the holder of any such instrument of the remedies provided for by law or by such mortgage, Lessee will, upon request of any person or party succeeding to the interest of Lessor as a result of such enforcement, automatically become the lessee of such successor in interest without change in the terms or other provisions of this Agreement. Upon request by such successor in interest, Lessee shall execute and deliver an instrument or instruments, reasonably acceptable to Lessee, confirming the attornment herein provided for.

B. At Lessor's request, Lessee will execute either an estoppel certificate or a three-party agreement certifying such facts other matters as may reasonably be required.

C. Notwithstanding the foregoing, Lessor hereby represents and warrants that it is the sole owner of the Boulevard Shopping Center Property as of the Effective Date and that this Agreement between Lessor and Lessee is not subject to an underlying lease.

Section 33.01 – Material Inducement:

The parties acknowledge and agree that the Abatement months have been granted to the Lessee as a material inducement to enter into this Agreement.

Section 35.01 – Security Deposit:

No security deposit shall be required for this Lease.

Section 36.01 – Rules and Regulations:

The Lessee agrees that during the initial term of this Agreement and any renewal thereof, to fully abide by and comply with the Rules and Regulations of the Boulevard Shopping Center attached hereto as *Schedule C*, as the same may be amended from time to time by the Lessor.

Section 37.01 – Design Criteria For Lessee Signs:

The Lessee agrees that any sign placed on or otherwise affixed to the Premises or to the Shopping Center advertising the Lessee's business shall be in strict accordance with this Agreement and *Schedule D* attached hereto.

Section 38.01 – Confidentiality:

The Lessor and Lessee agree that the terms and conditions set forth herein are confidential information and neither the Lessor nor the Lessee shall make available to the public or any person not at party to this Agreement, by written or oral communication, the terms, conditions or substance of this Agreement or the lease set forth herein, except for its investors, potential investors, legal advisors, accountants, and pursuant to governmental order or request.

Section 39.01 – Operating Hours:

After initially opening for one (1) day fully fixtured and staffed, Lessee shall have no obligation to operate for any required hours from the Premises; provided, however, Lessor shall have the right, by providing Lessee written notice thereof, to recapture the Premises and terminate the Lease if Lessee fails to operate for sixty (60) or more consecutive days from the Premises (casualty and condemnation excepted). Notwithstanding anything to the contrary in this Lease or in any Rules and Regulations adopted by Lessor, any requirement that Lessee maintain specific operating hours or remain open during certain days or times shall not apply to Lessee. Lessee shall have the sole discretion to determine the days and hours during which it conducts business from the Premises.

Section 40.01 – Miscellaneous:

Lessor represents and warrants that: (i) the individual executing this Agreement on its behalf is authorized to so do; (ii) it has obtained any and all consents and approvals from third parties, including any lender, required for Lessor to enter into this Agreement; and (iii) it has full right and authority to enter into this Agreement. Lessee represents and warrants that the individual executing this Agreement on its behalf is authorized to so do.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES]

List of Schedules:

- Schedule A: Plat of Leased Premises
- Schedule B: Site Plan of Common Area
- Schedule C: Rules & Regulations
- Schedule D: Design Criteria for Lessee Signs
- Schedule E: Guaranty Agreement
- Schedule F: ACH Agreement
- Schedule G: Breakdown of the Total Monthly Rental Payment for the Initial Term

Schedule H: Lessee's Plans

IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year first above.

LESSOR:

BELLE REALTY OF LAFAYETTE, LLC,
a Louisiana limited liability company



Printed Name: Adam A. Abdalla

Its: Authorized Representative

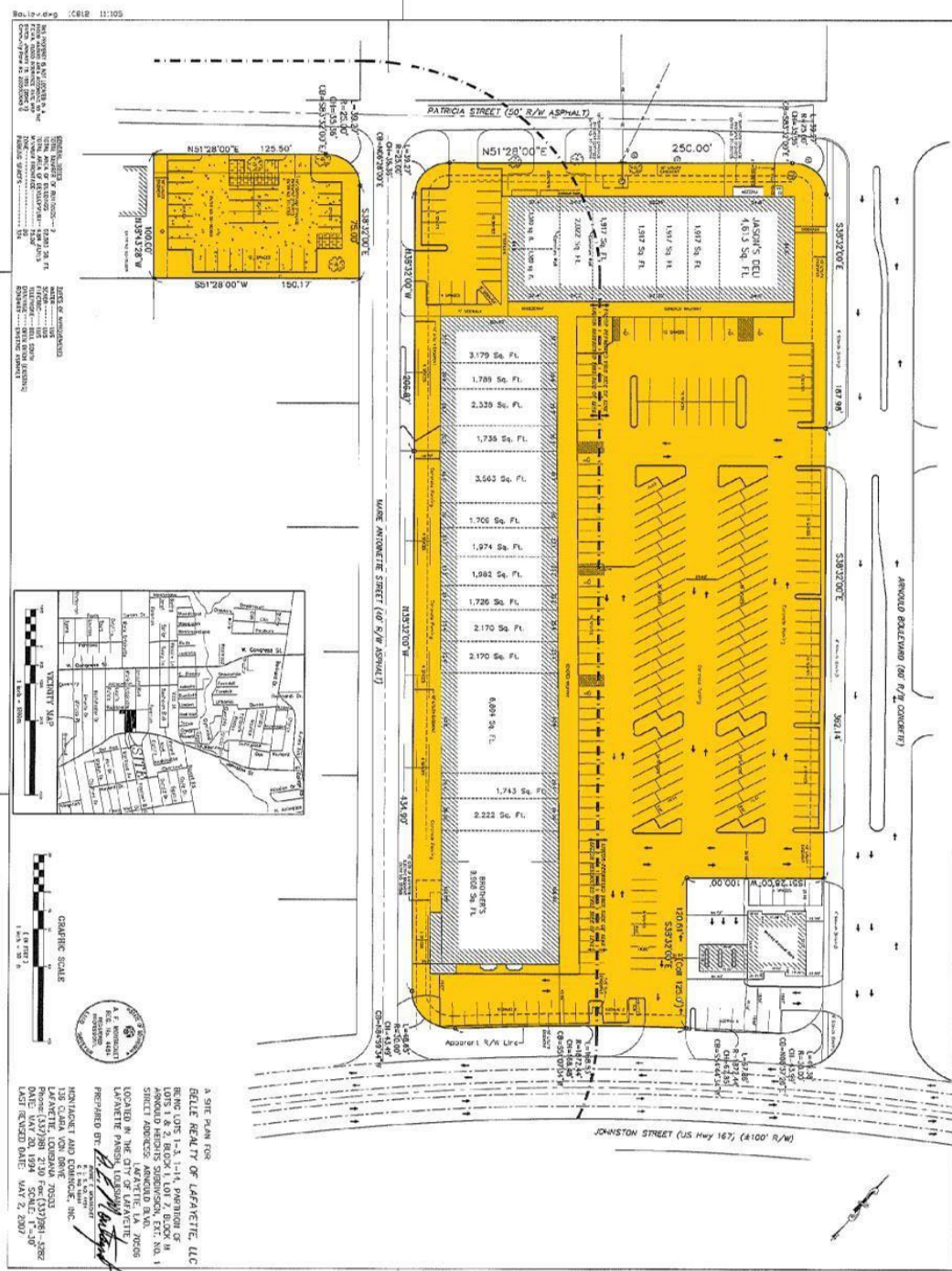
LESSEE:

UPSTREAM GROWTH PARTNERSS, LLC,
a Delaware limited liability company

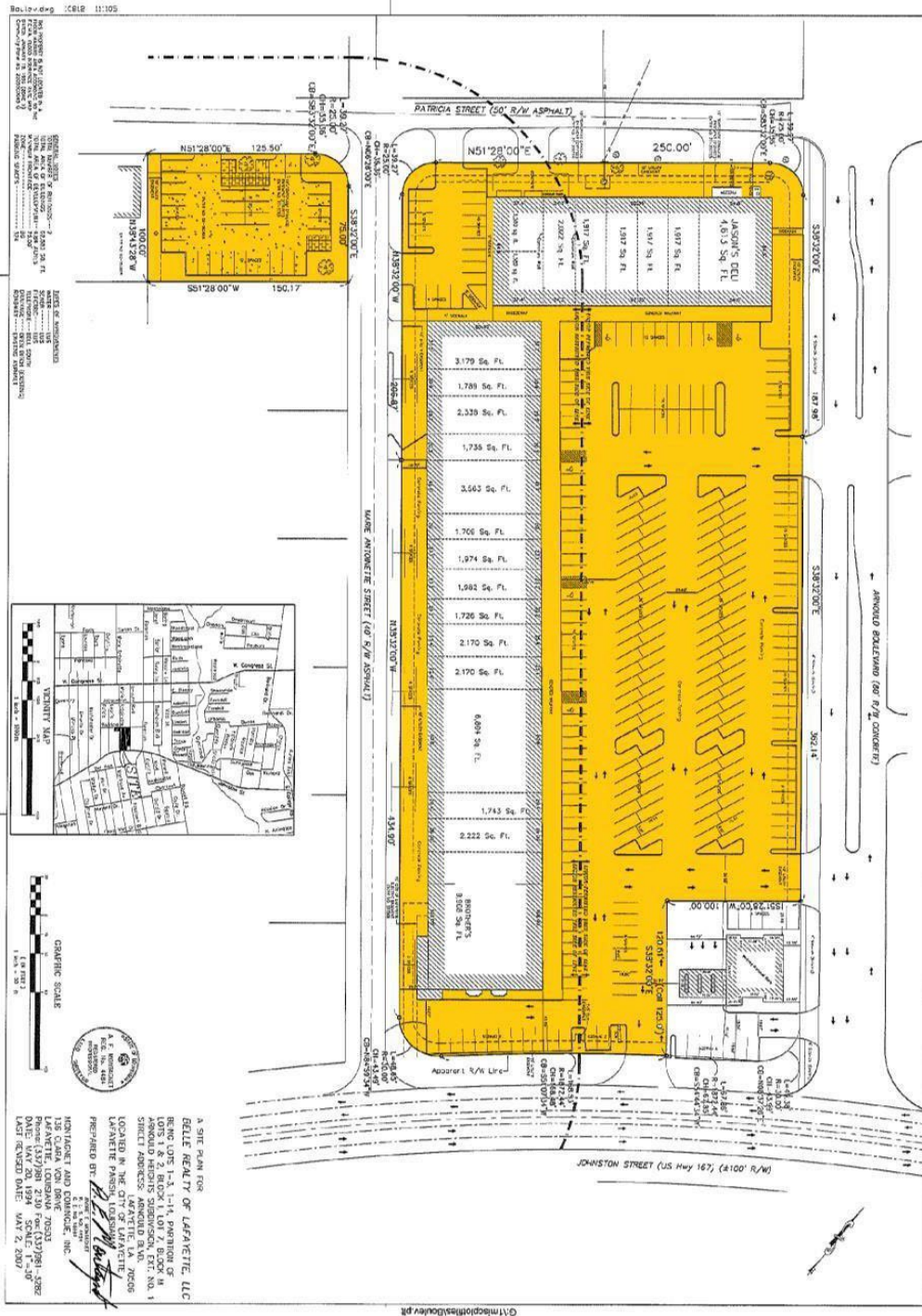
Printed Name: _____

Its: _____

SCHEDULE B



BOULEVARD SHOPPING CENTER PROPERTY SITE PLAN SHOWING COMMON AREA



SCHEDULE C
THE BOULEVARD SHOPPING CENTER PROPERTY
RULES AND REGULATIONS

All loading and unloading of goods shall be done only at such times, in the areas, and through the entrances, designated for such purposes by Lessor.

The delivery or shipping of merchandise, supplies, and fixtures to and from the Premises shall be subject to such rules and regulations, which in the sole judgment of Lessor are necessary for the proper operation of the Premises or the Boulevard Shopping Center (the "Shopping Center").

All garbage and refuse shall be kept in the kind of container or receptacle specified by Lessor, and shall be placed in the area outside of the Premises prepared for collection in the manner and at the times and places specified by Lessor.

No radio or television or other similar device shall be installed without first obtaining, in each instance, Lessor's prior consent in writing. No aerial or antenna of any kind shall be erected on the roof or exterior walls of the Premises, the building in which the Premises is located or on the grounds of the Shopping Center, without, in each instance, the prior written consent of the Lessor. Any aerial or antenna so installed without such written consent shall be subject to removal by the Lessor without notice at any time.

No loud speakers, televisions, phonographs, radios, or other devices shall be used in a manner so as to be heard or seen outside of the Premises without the prior written consent of Lessor.

If the Premises are equipped with heating facilities separate from those in the remainder of the Shopping Center, Lessee, during winter months shall keep the Premises heated at a temperature sufficient to prevent freezing of water in pipes and fixtures located within the Premises.

Lessee shall not place or permit any obstruction or merchandise in the exterior areas immediately adjoining the Premises.

The plumbing facilities within the Premises shall not be used for any other purpose than that for which they are designed, and no foreign substance of any kind shall be thrown therein, and the expense of any breakage, stoppage, or damage resulting from a violation of this provision shall be borne by Lessee.

Lessee shall use, at Lessee's cost, a qualified pest extermination contractor, whose services shall be scheduled so as not to reasonably interfere with the operation of the Shopping Center.

Lessee shall not burn any trash or garbage of any kind in or about the Premises, the Shopping Center, or within one mile of the outside property lines of the Shopping Center.

Lessee shall not make noises, cause disturbances, or create odors, which may be offensive to other tenants of the Shopping Center or their officers, employees, agents, servants, customers or invitees.

Lessee shall not place any type or kind of electrical power extension cord or light fixture outside of the Premises. The Lessee shall use only UL approved, ground faulted power strips to facilitate electrical power sources within the Premises.

Lessee shall not, without the prior written consent of the Lessor, hang or cause to be hung, any banner, sign, display or any other items of any kind outside of the Premises (including the lattice which is part of the building in which the Premises is located).

Lessee shall not, without the prior written consent of the Lessor, stand, erect, construct or otherwise place any display or any other thing of any kind whatsoever in front of the Premises.

In the event the Lessee displays any clock or other time keeping device on the Premises which is visible from the exterior, the same shall be maintained in a manner to display the accurate time at all times, including the adjustment of such time to reflect daylight savings time and standard time and to compensate for any power outages which may have affected such clock or time keeping device.

In the event the Lessee displays or otherwise employs a sign which is lighted by electrical current or otherwise, then the Lessee shall ensure that such signs are lighted as of dusk each day (adjusted for seasonal changes in such time) and remain lighted until midnight each day.

Lessee shall cause its name and address to be placed on the rear door of the Premises at its own expense.

Lessee shall not, nor shall Lessee permit any of its employees, contractors, customers or invitees to, solicit business or otherwise from any person or persons located on the Shopping Center property. Further, Lessee shall not respond or otherwise encourage or facilitate the solicitation by any outside person or persons on the Shopping Center property.

Operating Hours Exemption

Notwithstanding anything to the contrary in this Lease or in any Rules and Regulations adopted by Lessor, any requirement that Lessee maintain specific operating hours or remain open during certain days or times shall not apply to Lessee. Lessee shall have the sole discretion to determine the days and hours during which it conducts business from the Premises.

SCHEDULE D
BOULEVARD SHOPPING CENTER PROPERTY
DESIGN CRITERIA FOR LESSEE SIGNS

Lessee's sign or signs shall be store identity signs only, and must be placed on the exterior façade of the canopy which covers the sidewalk in front of the Premises (the "Canopy") in the area designated for signs. No signs shall be suspended from the underside of the façade, but may, subject to the approval of the Lessor, be suspended from the underside of the Canopy.

No freestanding signs shall be permitted.

Lessee's signage shall be manufactured by a sign manufacturing company approved by obtaining the Lessor's prior written consent, which said consent shall not be unreasonably withheld so long as the the Sign Design Criteria set forth in this Agreement is adhered to and is as fololows: Lessee's sign shall be Individual Channel Illuminated letters, interior light with single 12mm white neon, five and one-half (5 ½") inch deep Channel letters using .040 aluminum with bronze factory baked enamel finish, plastic facing, using 1" Jewelite gold Trim cap.

Letter style may be of the Lessee's choice, subject to review and written approval by Lessor prior to the sign order being placed with the company.

Lessee's sign shall be limited to letters not to exceed twenty-six (26") inches in height. The maximum length of Lessee's lettering may be 80% of the frontage of the Premises, but no letters shall be nearer than two (2') feet to either corner of the Premises. No exposed neon light shall be used on signs without Lessor's prior written approval.

All neon on interior of letters to be UL48 specifications, PK housing, electrical conduit, etc. Letters to be mounted on a raceway, shall not exceed store identity name with cabinet being a maximum eight (8") inches width and eight (8") inches depth (transformers mounted in raceway); the raceway shall be painted the same color of the building fascia to which it will be attached.

Lessee's lettering on doors, windows or show windows may not be illuminated and may not exceed six (6") inches in height.

Lessee's shall not employ paper signs to be applied to the interior or exterior faces of the store front glass or other material. Lessee shall not employ any flashing action, moving action or audible signs.

Lessee's sign shall be in accordance with ordinances of governing bodies having jurisdiction over the Shopping Center, the Premises and/or the Lessee.

Lessee's signs shall operate in a manner which automatically turns the sign(s) on at dusk and turns the sign(s) off at 12:00 midnight each day.

Lessor's approval of Lessee's plans and specifications for space improvement work shall not be deemed to constitute approval by Lessor of any of Lessee's sign work. Lessee shall submit separate drawings and specifications, in quadruplicate, including colors, for all its proposed sign work. The drawings shall clearly show the location of all signs on the storefront elevation drawing, graphic, color and construction and attachment details. Within a reasonable time after the receipt of such drawings and specifications, Lessor shall return one set thereof to Lessee with its approval and/or any suggested modifications from Lessor. Lessee shall be deemed to have agreed to and approved all suggested modifications.

All Lessee signs must be fully approved in writing by Lessor prior to installation.

In the event that Lessee places or otherwise erects a sign or signs in any place other than within the Premises without the prior written approval of the Lessor, the Lessor shall have the right to remove such sign or signs and the costs of removal shall be the responsibility of the Lessee. The Lessee shall reimburse the Lessor for such costs within thirty (30) days of receipt of an invoice from the Lessor for the costs of removal of the sign or signs. The cost of such removal shall be considered rent due hereunder and the non-payment by the Lessee shall be considered nonpayment of rent and entitle the Lessor the exercise its rights for non-payment of rent.

SCHEDULE D
BOULEVARD SHOPPING CENTER PROPERTY
GUARANTY AGREEMENT

NA

**EXHIBIT A
TO
GUARANTY AGREEMENT**

N/A

**SCHEDULE E
BOULEVARD SHOPPING CENTER PROPERTY
ACH AGREEMENT**

Intentionally deleted.

**SCHEDULE G
BOULEVARD SHOPPING CENTER PROPERTY
BREAKDOWN OF THE TOTAL MONTHLY RENTAL PAYMENT**

Month 1-6	UNIT 145	MONTH 1-6	1917
	RENT ITEM	PER SF	PER MONTH
	BASE	\$ -	\$ -
	CAM	\$ 2.10	\$ 335.48
	TAX	\$ 0.95	\$ 151.76
	INS.	\$ 1.95	\$ 311.51
	TOTAL	\$ 5.00	\$ 798.75
Month 7-60	UNIT 145	MONTH 7-60	1917
	RENT ITEM	PER SF	PER MONTH
	BASE	\$ 14.00	\$ 2,236.50
	CAM	\$ 2.10	\$ 335.48
	Taxes	\$ 0.95	\$ 151.76
	Insurance	\$ 1.95	\$ 311.51
	TOTAL	\$ 19.00	\$ 3,035.25

SCHEDULE H

Lessee's Plans

[See attached]